

Judgment Sheet.
IN THE LAHORE HIGH COURT, BENCH AT
MULTAN
(JUDICIAL DEPARTMENT)

Writ Petition No.4783 of 2013

Pakistan Institute of Pharmacy
Versus
Government of Pakistan etc.

JUDGMENT

Date of hearing: 16.12.2014.

Petitioner by: Mr. Tariq Zulfiqar Ahmad Choudhary, Advocate.
Respondents by: Sh. Jamshed Hayat, Advocate.
Ejaz Farrukh, Law Officer.
Mr. Aziz ur Rehman Khan, Assistant Advocate General,
Punjab for the State.
Sheikh Muhammad Naeem Godeja, Deputy Advocate
General for Pakistan.

Ch. Muhammad Iqbal, J:- Through this

Writ Petition, the petitioner prays as under:-

“Under the circumstances, it is respectfully prayed that this writ petition may kindly be accepted and the order dated 12-04-2013 (Annex. “G”) of the respondent No.2 issued without reason or justification, may kindly be declared null and void, against the rights of the petitioner, it be set aside and the earlier order dated 30-01-2013 of approval of 2nd shift of ‘B’ category Technician classes of pharmacy, may kindly be allowed to be continued/implemented.”

2. Brief facts of the case are that the petitioner’s institute was allowed to provide Pharmacy Education to the students. On the application of the petitioner’s institute, the Pharmacy Council of Pakistan under the

Pharmacy Act, 1967, allowed it to enroll 50 students per year provided that:-

“a) They will admit a maximum of 50 (fifty) students in an annual intake as required vide Council Regulations.

b) The Laboratories needs to be further strengthened and established properly with more equipments.

c) It undertakes teaching programs in accordance with the approved syllabi and that due provision is made for the instructions, health, recreation and discipline of students.

d) The Institution maintains a library.

e) The Institute will hire permanent faculty members for teaching and imparting training to the students. The teaching Faculty conforms to the standards as prescribed by the Council Regulations and the institution shall engage at least 50% whole time teachers for each category. Any change in the teaching Faculty shall be communicated to the Council immediately.

f) All employees, whether Temporary/permanent or visiting shall be employed on a written agreement stating clearly the terms and conditions on which they are engaged.

g) The Institution shall get the students registered with the Punjab Pharmacy Council within sixty days of their admission under intimation to this Council.

h) The Institution will be inspected from time to time by the Council and the Council shall take appropriate action on any genuine complaint.

i) The approval to conduct the training program may be withdrawn or modified if the institution fails to continue to satisfy the condition of the said approval or if the training is conducted in a manner, which is prejudice to the interests of pharmacy education.

A visit to review the above will be conducted in six months. The Council is confident that under your vision and dynamic leadership, the

Institute would achieve its goal to become a leading institution.”

3. Petitioner's institute was providing Pharmacy Education for Morning Classes, thereafter, the petitioner further applied to the Secretary, Pharmacy Council of Pakistan, Islamabad, for the approval of Second Shift (Evening Classes) on 26.12.2012. The said application of the petitioner was still pending when the petitioner requested to the Secretary, National Regulations & Services, Islamabad, for the approval of Second Shift (Evening Classes). On 30.01.2013, Government of Pakistan, Ministry of National Regulations & Services, Islamabad granted the approval of Second Shift ("B-Category Technician") to the petitioner. Petitioner enrolled 50 students in Second Shift and thereafter vide letter dated 12.04.2013 Pharmacy Council of Pakistan informed the petitioner that vide letter bearing No.F.2-10/2013-DS(A) dated 10.04.2013, the Ministry of National Regulations & Services, Islamabad, cancelled the letter dated 30.01.2013, as such, the respondents advised to apply afresh for granting permission for starting the Second Shift, hence, this Writ Petition.

4. Learned counsel for the petitioner submits that the petitioner applied for approval on 26.12.2012 to respondent No.2 but no decision has been made and the petitioner then applied for the approval of Second Shift to the Secretary of National Regulations & Services, Islamabad, which was duly approved where after the petitioner started the Evening Classes and enrolled 50 students. The letter dated 12.04.2013 is illegal, void and ab-initio and the approval of the petitioner cannot be cancelled/recalled without hearing, without notice and without any plausible

reason or explanation, as such, the impugned letter dated 12.04.2013 is liable to be set aside. Learned counsel for the petitioner relied upon the judgments reported as **(1983 SCMR 587), (1995 CLC 846), (1998 CLC 50) and (PLD 1952 Karachi 54).**

5. Learned counsels appearing on behalf of the respondents submit that the writ petition has been filed by un-authorized person. The Members of Society have not passed any resolution to authorize the petitioner's institute to file the Writ Petition. Further submits that the Writ Petition is pre-mature. It is contended that under Section 17 of the Pharmacy Act, 1967 only respondent No.2 is authorized to approve the Pharmacy Institution. It is argued that the petitioner obtained approval from the Ministry of National Regulations & Services, Islamabad, which is illegal and without lawful authority and through the impugned order/letter, the respondent No.2 advised the petitioner to apply for the approval of Second Shift i.e. "Evening Classes" but till to-date no application in this regard has been filed.

6. I have heard the arguments of the learned counsel for the parties and have perused the record, appended herewith.

7. Writ Petition was filed on behalf of Pakistan Institute of Pharmacy, Dubai Garden, G.T. Road, Sahiwal, through its Principal, which is working under the "Doulat Charitable Society", Peoples Colony, Ghallah Mandi, Tehsil & District Sahiwal. The so-called resolution which is at Page 11 of the Writ Petition passed by the Members of Society in which no order or letter dated 12.04.2013 is mentioned and there is no authorization to challenge the above mentioned

order, as such, the Writ Petition was filed by unauthorized person. Reliance is placed on the cases reported as Telecard Limited Vs. Pakistan Telecommunication Authority (2014 CLD 415), Muhammad Imran Barni Vs. Federation of Pakistan and 4 Others (2001 YLR 2666), and M/s Standard Hotels (Private) Limited Vs. M/s Rio Centre and others (1994 CLC 2413).

8. In terms of letter dated 12.04.2013 which is impugned in this Writ Petition where the Secretary, Pharmacy Council of Pakistan advised the petitioner to fulfill the criteria and apply afresh for granting the permission for starting the Second Shift Classes. Petitioner did not apply the same afresh. This shows that the petitioner tried to play fraud upon the public at large with the impression that the petitioner has already got affiliation under the Pharmacy Act, 1967 for Second Shift Classes, as such, petitioner has not come to this Court with clean hands. The law leaned towards persons who believed in the rule of law and not those who took the law in their hands. Reliance is placed on the case reported as Fazal ur Rehman and others vs. Province of Punjab through District Officer (Revenue) Bhakkar and another” (2014 SCMR 1351).

9. The Central Pharmacy Council of Pakistan, constituted under Section 3 of the Pharmacy Act, 1967, to regulate the practice of Pharmacy etc. The

functions of the Central Council as prescribed by the Act are as under:-

“17. Functions of the Central Council. (1)

The functions of the Central Council shall be

- (a) to approve examinations in pharmacy for the purpose of qualifying persons for registration as pharmacists;*
- (b) to prescribe the subjects in which approved examinations shall be held;*
- (c) to approve the courses of study and practical training in pharmacy for the purpose of admission to approved examination;*
- (d) to prescribe the conditions and procedure for admission of candidates to an approved examination;*
- (e) to lay down the standard of teaching to be maintained by institutions conducting the approved courses of study;*
- (f) to prescribe the equipment and facilities to be made available to the students;*
- (g) to recognize degree or diplomas in pharmacy for the purpose of registration as pharmacists;*
- (h) to cause inspection of institutions which conduct any course of study in pharmacy and of the teachings imparted and examinations held by them; and*
- (i) to do such other acts and things as it may be empowered or required to do by or under this Act.”*

(2) The Central Council, with the previous approval of the Central Government, may, by notification in the official Gazette, make regulations for the purposes of sub-section (1).”

“18. Approval of examinations. (1) Any institution or authority, including a Provincial Council, which holds an examination in pharmacy, may apply to the Central Council for

approval of the examination for the purpose of qualifying a person for registration as a pharmacist under this Act.

(2) The Central Council, if it is satisfied after such inquiry as it may think fit that the examination for the approval of which an application has been made under sub-section (1) is in conformity with this Act and the regulations, shall approve the examination and, by notification in the official Gazette, declare it to be an approved examination for the purpose of qualifying a person for registration as a pharmacist under this Act.

“19. Approval of courses of study. (1) Any institution or authority which conducts a course of study in pharmacy may apply to the Central Council for approval of such course of study for the purpose of admission to an approved examination.

(2) The Central Council, if is satisfied after such inquiry as it may think fit that the course of study for the approval of which an application has been made under sub-section (1) is in conformity with this Act and the regulations, shall submit the application together with its recommendation to the Central Government and shall, upon the approval of the course of study by the Central Government, declare it, by notification in the official Gazette, to be an approved course of study for the purpose of admission to an approved examination.”

10. Under Gazette Notification dated 12.12.2009, Regulations No.4 and 5 (2), the Pharmacy Council is authorized as under:-

“4. Inspection of hospitals in which training in pharmacy is conducted.— (1) The teaching hospitals attached to a Pharmacy institution and other hospital such as District head Quarter hospitals, tehsil hospitals and private hospitals having adequate facilities in accordance with the standards laid down by the Central Council and are utilized for training in pharmacy or

residency of the trainees in pharmacy may be inspected. The Inspector, if so authorized in writing by the President of the Central Council, while inspecting such hospitals for the purpose of the training or residency, may evaluate the availability and sufficiency of the following facilities, namely:—

- (a) number of pharmacists available.*
- (b) bed strength;*
- (c) details of the pharmacy services provided by the hospitals:*
- (d) number of Conferences and seminars in pharmacy discipline organized; or*
- (e) budget for utilization on account of pharmacy related objects.*

(2) After inspection under sub-regulation (1) the Inspector shall report to the Central Council on the suitability of training in pharmacy and residency of the trainees in pharmacy. Upon receipt of this report the Central Council may take such action as it may deem appropriate in accordance with the Act.

5. Recognition of degree, certificate or diploma of Pharmacy institution.— (1) Any Pharmacy institution, which holds an examination in pharmacy, shall apply to the Central Council for approval of the examination for the purpose of qualifying a person for registration as a pharmacist under the Act.

(2) Any Pharmacy institution which conducts a course of study in pharmacy shall apply to the Central Council for approval of such course of study for the purpose of admission to an approved examination under the Act.

11. In view of the above, only the Pharmacy Council of Pakistan has right to approve any institution for pharmacy and without approval nobody is allowed to enroll any student. Reliance is placed on the case

reported as Punjab Pharmacy Education Foundation, Lahore Vs. Secretary health, Government of Pakistan, Islamabad and 2 others (PLD 2000 Lahore 202).

12. The letter/order dated 30.01.2013 issued by Ministry of National Regulations & Services is without lawful authority. The said approval is not approval in the eye of law and also against the Act, 1967. When order is void and without lawful authority then nobody can say to restore the same. Reliance is placed on the case reported as Khuda Bakhsh Vs. Khushi Muhammad and 3 others (PLD 1976 SC 208), which is as under:-

“The order of the Chief Settlement Commissioner dated the 7th November 1966, had merely pointed out the want of jurisdiction in the order dated the 9th of May 1962. The order dated the 9th of May 1962 was void ab initio on account of want of jurisdiction in the Chief Settlement Commissioner to pass the order, and it was, therefore, a nullity and could be ignored. Such an order did not require to be set aside in appeal or in an other proceeding. Vide PLD 1964 SC 97 at page 101. In the case of Yusuf Ali Mullah Noor Bhoy V. The King (1) it was observed as follows:-

“But if the orders were a nullity there was nothing to appeal against. It may well be that the Government if embarrassed by the orders of acquittal, might have applied to the High Court to quash them. In this connection reference may be made to the decision of the House of Lords in Crane V. Director of Police Prosecutions, (1921) 2 A C 299; (90 L J K B 1160). But the omission of Government to take such step, which was not incumbent, could not convert an order made without jurisdiction into an order passed by Court of competent jurisdiction. Some emphasis was laid on the conduct of the Government of Bombay in appealing against the orders passed by the learned Magistrate, under section 517, Criminal

P.C. It may be that the High Court ought not to have entertained such appeals, but no question as to the validity of the orders made in these appeals is before the Board. It was rightly conceded by Mr. Page that the action of the Government of Bombay in appealing against the orders made by the Magistrate under section 517 could not operate by way of estoppel to confer jurisdiction upon the Magistrate which he did not otherwise possess.”

Another reliance is placed on the case reported as Bashir Ahmad Vs. Meer Aslam Jan (2007 CLC 1544), is as under:-

“It is also clarified that proceedings conducted without jurisdiction are nullity in the eye of law and cannot be held sacrosanct. It cannot be held legally justified on the score of raising it through delayed application. Therefore, by accepting this civil revision, the order dated 21.10.2004 passed by learned Additional District Judge is set aside and the suit of the plaintiff is directed to be returned to the plaintiff for filing it before the competent Court.”

Another reliance is placed on the case reported as Messrs East-West Insurance Company Ltd. Vs. Messrs Muhammad Shafi & Company (2009 CLD 960), is as under:-

“9. If in a case the Tribunal or Court does not have the jurisdiction under the law, jurisdiction cannot be conferred on a Court or Tribunal by the consent of the parties or even by the Court. Courts are bound to decide the list before them in accordance with law. Justice, according to law, is the duty of Court, which can neither be abdicated in favour of whims or ignorance of parties or their counsel. If the Court otherwise lacks jurisdiction to adjudicate the matter, then mere consent of the parties cannot confer jurisdiction. Question of jurisdiction is always a fundamental question, which must be decided at the initial stage of the proceedings. Reliance is placed on the cases of Executive District Officer School V. Qamar Dost Khan 2006 SCMR 1630, Muhammad and others V. Muhammad Shafi and

another PLD 1996 SC 292, Hap Abdullah Khan and another V. Nisar Ahmad Khan PLD 1965 SC 690, Salah-ud-Din Tirimzi V. Election Commission of Pakistan PLD 2008 SC 735 and All Pakistan Newspaper Society and another V. Federation of Pakistan PLD 2004 SC 600.”

Reliance is also placed on the cases reported as Tehsil Nazim TMA, Okara Vs. Abbas Ali and 2 Others (2010 SCMR 1437), S. Sharif Ahmed Hashmi Vs. The Chairman, Screening Committee, Lahore and another (1980 SCMR 711), Yar Muhammad Khan and others Vs. Sajjad Abbas and others (PLD 2012 Lahore 115) Jehan Khan Vs. Province of Sindh and others (PLD 2003 Karachi 691)

13. It is now well established that in the exercise of its constitutional jurisdiction, this Court has no jurisdiction to entertain and hear any matter through constitutional jurisdiction, which requires evidence and in this petition, factual controversy is involved. Reliance is placed on the case reported as Province of East Pakistan Vs. Kashid Dhar Rov and Others (PLD 1964 Supreme Court 636).

Relied upon the case reported as Sultan Ahmad and others V. Superintending Engineer Bahwalnagar, Canal Circle Bahawalnagar and others (1988 MLD 1460), is as under: -

“The main argument that the learned counsel wants to advance is that mandatory provisions of section 20 of the Canal and Drainage Act, have not been complied with, and thus, the order (Annexure ‘E’) and those passed thereafter are void ab initio. The same point can be urged in a civil suit before a civil Court. The only answer given by the learned counsel to the question as to why that remedy should not be pursued by the petitioner is that the proceedings in the suit would be lengthy. The long and heavy pendency of writ petitions filed in the High Court when compared to disposal of cases in

Civil Courts has shown that in the present circumstances remedy by way of civil suit is speedier.

2. On the question of early hearing of a writ petition I am of the view that directing early hearing of a writ petition without affording opportunity of hearing. On this point to all the writ petitioners whose writ petitions are pending in the High Court is against the interest of justice.

3. There is no justification for admitting this petition. I have express similar view in Writ Petitions Nos.1340/73 and 1469/73. For the above reasons, this petition is dismissed.

4. This order shall not be a bar to the petitioners seeking remedy by way of a civil suit.”

Another reliance is placed on the case reported as Muhammad Younas Khan and 12 others Vs. Government of N.W.F.P. and others (1993 SCMR 618), the relevant portion is as under:-

“The nature of controversy particularly the legality and correctness of Mutation No.36 is essentially a factual controversy. Where the case has been considered by various authorities, their decision on fact can be disturbed in exercise of writ jurisdiction if it is against the material on record or without any basis. Even in such cases the High Court refrains from substituting its own finding of fact and proper course is to remand the case to lower Tribunal for proper determination of the controversy. Reference can be made to PLD 1970 SC 39; 1972 SCMR 47 and 1981 SCMR 758. It is a consistent view of this Court that in cases where factual controversies are involved, Constitution petition in the High Court is not the proper remedy. Reference can be made to:

PLD 1980 SC 139; 1980 SCMR 933; 1981 SCMR 291; 1989 SCMR 918 and PLD 1991 SC 476.”

Another reliance is placed on the case reported as Anjuman Fruit Arhtian and others Vs. Deputy

Commissioner, Faisalabad and others (2011 SCMR 279), is as under:-

“6. It is worth mentioning that it is mandatory and obligatory for a party invoking the Constitutional jurisdiction to establish a clear legal right which should be beyond any doubt and controversy. In the light of alleged forgery and fraud as pointed out by learned Additional Advocate General, we are of the considered view that legal right and entitlement of the petitioners are controversial. It hardly needs any elaboration that disputed question of fact cannot be decided in constitutional jurisdiction. In this regard reference can be made to the following authorities:-

“Benedict F.B. Souza V. Karachi Building Control Authority (1989 SCMR 918), Karachi Municipal Corporation V. Hargina Salt Chemicals (1988 SCMR 1259), Ehsanul Haq Kiani V. Allied Bank of Pakistan, Karachi (1984 SCMR 963), Mian Muhammad V. Municipal Committee (1983 SCMR 732), N.M. Khan V. Chief Settlement and Rehabilitation Commissioner (1970 SCMR 158), Muhammad Ibrahim Mondal V. Province of East Pakistan (PLD 1964 Dacca 522), Rizwan Co-operative Society V. Custodian of Evacuee Property (1978 SCMR 449), Muhammad Sadiq V. Commr., Rawalpindi Division (1973 SCMR 422), Musharofa Begum V. Nayyar Hussain (1984 SCMR 377), Muhammad Ishaq V. Abdul Haque (1974 SCMR 28), Niaz Muhammad V. Abdul Aziz (1982 SCMR 883), Abdul Rahman V. Said Muhammad (1982 SCMR 372).”

14. Through the impugned order dated 12.04.2013 the Pharmacy Council of Pakistan advised to the petitioner to apply afresh for granting the permission for starting the Second Shift Classes but till to-date, the petitioner has not applied the same which shows that the petitioner is not willing to perform its part of duty according to law, no final order was passed by the

competent authority, as such, the Writ Petition is premature. In this regard, reliance is placed in the cases reported as Anjuman Fruit Arthian and others Vs. Deputy Commissioner Faisalabad and others (2011 SCMR 279) and Muhammad Younus Khan and 12 others Vs. Government of N.W.F.P. through Secretary Forest and Agriculture Peshwar and others (1983 SCMR 618), Virasat Ullah Versus Bashir Ahmad, Settlement Commissioner (Industries) and another (1969 SCMR 154), Khalid Mehmood Chaudhary and others Versus Government of Punjab, through Secretary, Livestock and Dairy Development (2002 SCMR 805). This Court has also reiterated the same view i.e. Muhammad Mahmood Ali Versus Pakistan through Secretary, Ministry of Finance (1984 CLC 142), Muhammad Akhtar Sherani and 35 others versus The Punjab Text Book Board, Lahore and 4 others (2001 PLC (CS) 939), Messrs Chakwal Textiles Mills Limited, Rawalpindi Road Chakwal and another versus Director Social Security, Rawalpindi and 2 others (2012 PLC 270), Abdul Raheem Khan, Executive Manager (Operation) MEPCO its Division, D.G. Khan Versus Managing Director PEPCO, WAPDA House, Lahore and 2 others (PLJ 2012 Lahore 93 D.B), Mst. Zahida Shama Versus Secretary Education and other (PLJ 2002 Lahore 1479), Niaz A. Baloch Versus Chairman, National Accountability Bureau and 2 others (2008 P.Cr.L.J 1463) and Tariq Mehmood Versus Air Cdre. (R.) Nayyar Q. Khawaja and 4 others. (2003 P.Cr.L.J.1512).

15. The petitioner on 16.12.2013, gave undertaking which shows his malafide intention. The same is reproduced as under:-

“It is requested to please issue the roll number slips and save the lives of the students, we assure you and under take that the result of the students shall be with held until and unless the honourable court issue orders OR Central Pharmacy Council approve our institute. You will proceed according to law. We will never force or initiate any step for the issuance of result.”

16. This Court has no jurisdiction to interfere in the working of statutory professional bodies. Reliance is placed on the case reported as **(2012 SCMR 1841)**.

Relevant portion is reproduced as under:-

“In All India Council for Technical Education v. Surinder Kumar Dhawan (2009 (II) SCC 726: (AIR 2009 SC 2322: 2009 AIR SCW 3124) this Court held:---

“The courts are neither equipped nor have the academic or technical back ground to substitute themselves in place of statutory professional technical bodies and take decisions in academic matters involving standards and quality of technical education. If the courts start entertaining petitions from individual institutions or students to permit courses of their choice, either for their convenience or to alleviate hardship or to provide better opportunities, or because they think that one course is equal to another, without realizing the repercussions on the field of technical education in general, it will lead to chaos in education and deterioration in standards of education... The role of statutory expert bodies on education and role of courts are well defined by a simple rule. If it is a question of educational policy or an issue involving academic matter, the courts keep their hands off. If any provision of law or principle of law has to be interpreted, applied or enforced, with reference to or connected with education, the courts will step in.”

17. The petitioner’s institute may apply for approval to the Pakistan Pharmacy Council, as required under the law and without approval from the competent authority, the act of the petitioner is not only illegal

but also shows aims of the petitioner only to earn money and tried to spoil the future of the youngest of this nation. When law required or things to be done in a particular manner it has to be done in that way, otherwise it has no sanctity in the eyes of law. Reliance is placed in the case reported as **(2012 PLC (CS) 772)**

Another reliance is placed on the case reported as International College of Commerce Vs. University of the Punjab **(PLD 2004 Lahore 335)**. The relevant portion is reproduced as under:

“A citizen is not prohibited from establishing and administering an educational institution of his own choice. But to establish educational institutions can by no stretch of imagination, be treated as practicing any profession. Teaching may be a profession but establishing an institution, employing teaching and non-teaching staff, procuring the necessary infrastructure for running a school or college is not practicing profession. It may be anything but not practicing a profession. I must make it clear that I have not gone into the precise meaning and content of the expressions professions, occupation, trade or business for the reason that it is not necessary for me to do so in view of the approach I am adopting hereinafter, which would be evident from the succeeding paragraphs. Assuming, however, that a person or body of persons has a right to establish an educational institution in this country, even then this right is not an absolute one. It is subject to such law as may be made by the State in the interest of general public. On these premises, the question, which arises for consideration in the instant case is whether a person who has the right to establish and administer an educational institution of his choice, has a fundamental right to affiliation. The submission of the learned counsel is that the right of the petitioner to establish an educational institution of his choice will be rendered nugatory if affiliation is denied, and that the establishment of the college by him

would be of no utility unless the same is affiliated to the respondent-University for the purpose of conferment of degrees on students. Indisputably, when an institution applies to a University to be affiliated. It has to conform to the measures prescribed by the concerned University inter alia for regulating the course of study, qualifications of teachers, and facilities for libraries and laboratories which are matters germane to affiliation. The conditions precedent for affiliation are meant for uniformity, efficiency and excellence in educational courses and do not violate any fundamental right.”

18. For what has been discussed above, this petition has no merits and being pre-mature is **dismissed**.

(CH. MUHAMMAD IQBAL)
JUDGE

APPROVED FOR REPORTING

JUDGE

M. Ashraf & Farhan